

NATIONAL NURSES ASSOCIATION OF KENYA (NNAK)

DIGITAL PLATFORM PRIVACY POLICY

Last Updated: July 2026

The National Nurses Association of Kenya (“NNAK”, “we”, “us”, or “our”) is committed to protecting the privacy and security of your personal data. This Privacy Policy explains how we collect, use, disclose, and safeguard your personal and professional information when you register and utilize the NNAK Digital Member Portal and Event Management System.

This Policy is formulated in accordance with the **Kenya Data Protection Act, 2019**. By checking the consent box at registration, you explicitly authorize the processing of your data as described herein.

1. Data We Collect

To manage your membership and provide self-service access, we process the following categories of data:

- **Personal Identification & Contact Data:** Full Name, National ID/Passport Number, Phone Number, Email Address, and Passport Photo.
- **Professional Data:** Nursing Council of Kenya (NCK) Registration Number, Nurse Cadre, Primary Employer/Institution, and Branch/County affiliation.
- **Financial & Transaction Data:** Mobile money (M-Pesa) number, transaction reference codes, payment dates, subscription amounts, and monthly branch check-off/by-product remittance details.
- **System Usage Data:** Login credentials (securely hashed), IP addresses, access timestamps, and immutable audit trails of account modifications.

2. Purpose of Data Processing

Your data is processed under legal bases defined by the Data Protection Act, 2019, specifically for:

- **Contractual Obligation:** Validating your membership eligibility, assigning pricing tiers, creating your Digital Membership ID, and enabling online event registration.
- **Legitimate Interests:** Automating renewal reminders, verifying event attendance via QR code scanning, and generating operational analytics to improve association management.
- **Legal Compliance:** Keeping financial logs for mandatory statutory tax and audit.

3. Data Retention and Archiving

NNAK enforces strict information lifecycle rules to prevent indefinite data storage:

- **Active Records:** Your profile data is retained for the entire duration of your active membership plus seven (7) years post-lapse.
- **Automated Archiving:** If an account remains completely inactive (no logins, payments, or event interactions) for more than three (3) consecutive years, the platform

automatically transitions your record to "Archived" status, removing it from active views while locking the history securely for audit purposes.

- **Financial Records:** Pursuant to Kenyan financial laws, all payment and transactional logs are retained for a mandatory minimum of seven (7) years.

Retention Schedule

The following schedule defines the authoritative retention periods for all data categories:

Data Category	Active Retention	Archive Trigger	Max Retention	Disposal Method
Member Personal Profile	While membership is active	3 years inactivity	7 years post-lapse	Anonymization of personal identifiers; financial records retained in anonymized form
Payment & Financial Records	7 years	Immediate upon account closure	7 years minimum (Income Tax Act Cap 470)	Secure deletion after statutory period; audit log retained
Event Attendance Records	3 years	3 years from event date	3 years	Anonymization or secure deletion
Audit Logs	12 months (hot)	After 12 months	24 months	Secure deletion after 24 months; compliance logs retained per ODPC guidance
Communication Logs	12 months	After 12 months	12 months	Automated purge
M-Pesa Payment Method Details	Duration of subscription	Subscription termination	Subscription end + 30 days	Cryptographic erasure of encryption keys
By-Product Remittance Files	7 years	Immediate on upload and reconciliation	7 years	Secure deletion after statutory period

Data Archival

- The system shall automatically archive member records where the member has been inactive (no login, no payment, no event attendance) for more than 3 continuous years.
- Archived records shall not appear in active reports or operational member registers.
- Archived records shall remain restorable by the System Administrator for the duration of the applicable retention period.

- An archival log entry shall be created for each record archived, capturing member ID (anonymized reference), archival date, trigger event, and authorizing system process.

4. Data Sharing and Third-Party Disclosures

We do not sell your data. Your data is shared strictly with authorized partners under data processing agreements:

- **Technology Providers:** Data Systems Engineering Ltd (DSE) handles technical administration and continuous system maintenance.
- **Payment Gateways:** Safaricom M-Pesa Daraja API triggers payment requests and processes real-time subscription renewals.
- **Branch Administrators:** Local branch executives are granted access strictly to membership numbers within their geographical county bounds.

5. Data Security Measures

NNAK and DSE deploy enterprise-grade security protocols to prevent unauthorized data access, leakage, or modification:

- **Access Control:** Strict Role-Based Access Control (RBAC) ensures only authorized officers see specific fields.
- **Encryption:** Personal and financial data are encrypted both during transmission (in-transit) and while sitting in databases (at-rest).
- **Session Protocols:** Mandatory automatic session timeouts take effect after thirty (30) minutes of inactivity to protect accounts on shared terminal screens.
- **Immutable Tracking:** System logs are write-protected, establishing an unalterable audit history of user activities.

6. Your Data Protection Rights

Under Section 26 of Kenya's Data Protection Act, 2019, you retain the following rights:

- **Right to Access:** View and verify all historical and profile information held about you in the member portal.
- **Right to Rectification:** Update inaccurate personal data (changes to professional NCK numbers require secretariat validation).
- **Right to Erasure (Right to be Forgotten):** Request account deletion. Upon request, the platform will permanently anonymize your personal identifiers within thirty (30) days, except for financial transaction archives required to be legally preserved.

7. Contact Information

For any inquiries regarding your data privacy, or to exercise your statutory data protection rights, please contact the NNAK Data Protection Lead at info@nnak.or.ke or visit the NNAK Secretariat Headquarters.